

Legal audit

Overdrive

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OverDrive – Legal audit

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Introduction

The purpose of this legal audit is to identify the main legal risks related to the development and operation of OverDrive. The project is located at the intersection of several sensitive areas :

- Data exploitation from sporting competitions,
- real-time data dissemination and processing,
- user account management,
- use of virtual reality (VR) and augmented reality (AR).

OverDrive's premium positioning also implies a high level of compliance requirements. This audit therefore highlights critical points that could hinder the project and proposes simple and realistic adjustments to reduce risks from version 1 onwards.

1- Rights to exploit sporting competitions

1- Legal framework (France and Europe)

Motorsport, particularly competitions organised by entities such as the FIA, Formula 1, WEC or FE, is a sector heavily regulated by law.

In France and Europe, several protections apply :

- The organizers have exclusive commercial rights to their competitions.
- **Official real-time data** (live timing, rankings, driver information) may be considered protected, particularly when it originates from a proprietary system.
- Video streams are protected by copyright.
- Databases related to these competitions may be protected by the sui generis right for databases, particularly under French law (Article L341-1 of the Intellectual Property Code).

These protections mean that a product exploiting official sports data without authorization may be exposed to significant legal risk.

2- Critical risks for OverDrive

Within the context of OverDrive, several risks may arise if the application consumes or redistributes official data without clear rights.

Possible legal actions include :

- **Action for unfair competition:** if OverDrive is perceived as profiting from content commercially exploited by an official entity.
- **Action for parasitic competition:** if OverDrive exploits an organizer's investment without authorization, even without direct reproduction.
- **Action for illegal database extraction:** if OverDrive extracts a substantial or repeated portion of a protected database.
- **Court of execution by rights holders:** which may lead to the swift blocking of the project or a mandatory removal order.

This point represents the most critical legal risk, as it could prevent OverDrive from being distributed or marketed.

Operational threats and technical impacts

- Application blocking by the hosting provider upon notification of rights infringement
- Suspension of access to third-party APIs
- Claim for damages
- Immediate service interruption
- Reputational damage and loss of credibility

3- Case of open source data

OverDrive can greatly reduce this risk if the data used comes from truly open source or public sources.

However, several checks are necessary :

- confirm that the data is indeed free and reusable,
- verify the license (MIT, Apache, CC-BY, ODbL, etc.),
- respect the obligations of citation or redistribution.

An important point is that some sources may be “public” in their access but not legally free: the audit must therefore distinguish technical access from freedom of exploitation.

4- Recommended legal adaptations

A simple and very effective adaptation is to implement clear documentation of data sources.

Recommendations :

- Create a DATA_SOURCES.md file in the repository,
- and systematically list:

- the source,
- the license,
- the conditions of reuse,
- the attribution requirements,
- Display the necessary information in :
 - the interface (if required),
 - or the documentation (README / legal page).

This approach helps to increase transparency and limit the risk of disputes.

2- Protection of personal data (GDPR - email via OAuth)

1- Legal framework

OverDrive involves the creation of user accounts and therefore the processing of personal data.

In France and Europe, this treatment is regulated by :

- the General Data Protection Regulation (GDPR — EU 2016/679),
- the amended French Data Protection Act.

Two articles of the GDPR are particularly important :

- **Article 5:** Principle of data minimization (collect only what is necessary).
- **Article 6:** Legal basis for processing (justification for data processing).

2- Risks for OverDrive

The main GDPR risks for OverDrive are :

- collecting personal data without a clear legal basis,
- failing to properly inform the user (lack of transparency),
- retaining data for too long or without a clear policy,
- poor OAuth configuration leading to excessive collection (e.g., complete profile, contacts, unnecessary information).

Even though OverDrive collects little data, a non-compliance with user information or OAuth configuration can be enough to make processing problematic.

Regulatory threats and data security

- Sanction by the supervisory authority (e.g., CNIL in France)

- Administrative fine of up to €20 million or 4% of annual global turnover
- Obligation to notify in the event of a data breach
- Risk of data leaks or OAuth misconfiguration

3- Recommended approach: strict minimization

The most consistent strategy for OverDrive is a very simple “privacy by design” approach:

- collect only the email address,
- use the email address only for authentication,
- do not store any additional external data.

This approach is perfectly aligned with :

- Premium positioning (trust),
- technical simplicity,
- GDPR compliance.

4- Simple legal adaptations

Two simple measures can significantly reduce the risk:

1. Limit the OAuth scope to the bare minimum, ideally:
 - Email only.
2. Add a short, clear and accessible Privacy Policy, explicitly mentioning :
 - “Email is used solely for authentication purposes.”
 - Retention rules,
 - user rights (access, deletion).

This policy can be integrated into the web dashboard and accessible from the mobile application.

3. Responsabilité civile et obligation d’information (VR)

1- Legal framework

Unlike other technological fields, virtual reality does not currently have a specific law in France.

Therefore, liability rests on common law, in particular:

- Article 1240 of the Civil Code: Liability for fault.
- Article 1112-1 of the Civil Code: Duty to inform.
- Article L421-3 of the Consumer Code: General principle of safety.

This means that if a user suffers harm related to VR use, the central question becomes:

- Did the product properly inform the user of the known risks?

2- Potential risks

The risks associated with VR are well identified in the literature and in usage standards. The main ones are :

- Visual discomfort,
- fatigue,
- nausea,
- disorientation.

In the event of damage, the absence of a clear warning could be considered negligence, especially if the risk is known and foreseeable.

Concrete risk scenarios

- Fall or collision with a real object
- Loss of balance
- Physiological discomfort
- Claim for compensation in case of damage

3- Recommended legal adaptations

A simple adaptation would be to integrate a warning message when launching the VR application.

Recommended example :

“Prolonged use of VR devices may cause discomfort or fatigue. Regular breaks are recommended.”

Two important supplements are also recommended. :

- Never guarantee a “risk-free” experience;
- remind users that they remain responsible for their physical environment (free space, obstacles, safety).

These measures are simple, inexpensive, and significantly reduce legal risk.

Conclusion

The statutory audit highlights three major areas of concern for OverDrive.

- 1. Rights to exploit sporting competitions**

This is the most critical risk, as it can completely halt the project if the data used is not authorized. The solution lies in a clear strategy: use open-source or licensed sources, and systematically document the sources.

- 2. Protection of personal data (GDPR)**

OverDrive can maintain high compliance thanks to minimal data collection (email only) and strict OAuth configuration. A short and clear Privacy Policy ensures this aspect is secure from version 1.

- 3. Civil liability related to VR use**

Even without specific legislation, general law imposes an obligation to provide information. A simple warning at launch and clear communication about VR risks significantly reduce legal exposure.

By applying these recommendations from the first version, OverDrive can build a solid compliance base, consistent with its premium positioning and long-term credibility.